

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No.: 14-16

BALTIC AUTO SHIPPING, INC.,

Complainant,

– vs. –

**MICHAEL HITRINOV
a/k/a MICHAEL KHITRINOV,
EMPIRE UNITED LINES CO., INC.,**

Respondents.

**COMPLAINANT'S RESPONSE TO RESPONDENTS' MOTION FOR ENLARGEMENT
OF TIME TO FILE A PETITION FOR RECONSIDERATION**

Pursuant to Rules 69 and 71 of the Federal Maritime Commission's (the "Commission") Rules of Practice and Procedure (46 C.F.R. 502 *et seq.*), complainant, through its counsel, Marcus A. Nussbaum, Esq. respectfully submits this response to respondents' motion "...pursuant to FMC Rule 228, [for] a four-week enlargement of the time to file a petition for reconsideration of the October 25, 2017 Order [Denying Petition for Attorney Fees]..." (Document 121).

Respondents' instant motion for an enlargement of time is fatally defective and may be summarily rejected for a number of reasons. First, Rule 228 does not provide for enlargements of time for Petitions for Reconsideration, but rather for Exceptions.¹

Second, Respondents' counsel failed to make a good faith effort to confer with the undersigned before filing their motion as required by Rule 71(a) - - respondents 'effort' in this

¹ Even if the rule regarding enlargement of time for Exceptions could be applicable to respondents' instant application, respondents have still abjectly failed to demonstrate the requisite good cause required for entitlement to an enlargement of time to file their Petition for Reconsideration.

respect simply amounted to ‘checking the box’ prior to the filing of their motion. While the motion recites that a conferral took place and attaches a copy of the email correspondence between the parties, the Commission can see that respondents simply ignored complainant’s request that respondents explain what happened in the last twenty-one days that caused respondents to now believe that there is reason for reconsideration of the October 25, 2017 Order, and that they simply unilaterally proceeded with making the instant application. Respondents’ failure to confer is by itself is grounds for rejection.

Third, respondents fail to offer *any justification whatsoever* for seeking an enlargement of time, after having waited twenty-one (21) days to begin ‘mulling over’ any purported basis (which does not exist) for reconsideration of this Commission’s well-reasoned Order Denying Respondents’ Petition for Attorney Fees.

Finally, and inasmuch as respondents’ counsel has already stated that he had agreed with the Commission’s October 25, 2017 Order Denying the Petition Regarding Attorneys’ Fees (See, Footnote “2”), the instant application for an enlargement of time can only reasonably be construed as respondents’ continued effort to multiply these proceedings, vex, annoy, and harass complainant and its counsel, and cause complainant to continue to incur litigation expenses.

In sum, the sole reason proffered by respondents in support of their application is that they were simply too busy to “...devote the time necessary to evaluate the Commission’s ruling...”

- - this explanation abjectly fails to demonstrate the requisite good cause as required by Rule 102 for an enlargement of time, thus warranting denial of respondents’ motion in its entirety.²

² Notwithstanding the foregoing, on October 25, 2017, Mr. Werner notified complainant in writing that respondents had agreed with the Commission’s Order and were not planning on taking any further action in this matter (a copy of said email is annexed hereto as Appendix “A”). Respondents’ prior representation to that effect is irreconcilable with their representation now that they intend to seek reconsideration. Respondents ignored complainant’s request for an explanation as to what in the last twenty-one days had caused respondents to pivot from their prior position on this issue, who now simply state to the Commission that they have been too busy up until now to devote the time necessary to evaluate the Commission’s ruling.

Notwithstanding the foregoing, granting respondents an enlargement of time to file a Petition for Reconsideration is wholly unwarranted, since it would be facially inadequate to meet the Commission's standards for reconsideration, and because such a Petition is otherwise without any merit.

ARGUMENT

Respondents' Request for an Extension of Time

The Commission is respectfully asked to note that respondents' instant application is simply another contrivance to drag out the inevitable and long overdue end to these proceedings and dismissal of this action without an award of attorneys' fees to respondents. The only other explanation that could reasonably be attributed to respondents' instant application is that they simply wish to multiply these proceedings (and waste this Commission's precious time and resources) in order to cause complainant to further incur the expenses involved in responding to this and any forthcoming frivolous filings with the Commission on this case which has now finally, and conclusively been resolved. It is respectfully submitted that the application should be denied for the reasons set forth *infra*.

Respondents Offer No Good Cause for the Granting of an Enlargement of Time to File Their Petition

Mr. Werner's explanation that he was simply too busy to "...devote the time necessary to evaluate the Commission's ruling and the grounds cited therein to identify grounds for reconsideration..." falls short of the requisite good cause needed for granting an extension of time. Notwithstanding the foregoing, respondents' other attorney of record, Gerard S. Doyle, Esq. has been silent on this issue - - it would seem that if Mr. Werner was too busy, that Mr. Doyle should be able to quickly identify any alleged grounds for reconsideration (which do not exist) so that any forthcoming frivolous petition for reconsideration could be filed without the need for an extension of time.

Indeed, both Mr. Werner and Mr. Doyle have between the two of them, over forty-five (45) years of experience in maritime law, which is more than sufficient for them to come to the very same conclusion that a first-year law student would reach as to the abject absence of any grounds for reconsideration of the Commission's October 25, 2017 Order.

In his Declaration filed with the Commission in support of respondents' Petition Regarding Attorneys' Fees, Mr. Werner explained that he was a 2005 graduate of the Benjamin N. Cardozo School of Law, admitted to practice in the federal and state courts of New York and New Jersey, and has "...practiced maritime law for over 10 years, representing vessel owners and operators, container shipping lines, NVOCCs and freight forwarders, and numerous other clients involved in marine transportation and logistics." (Declaration of Jon Werner Document # 96, ¶ 2). Mr. Werner also explained that as attorney for respondents in this matter and other matters that he is "...familiar with the work done on this matter by Lyons & Flood, LLP." (Id. at ¶ 3). It is undisputed that said work would include the Petition for Attorneys' Fees personally filed by Mr. Werner.

In his Declaration filed with the Commission in support of respondents' Petition Regarding Attorneys' Fees, Mr. Doyle explained that he has "...practiced maritime law for over 35 years, representing major containership operators, international trading and logistics companies such as NVOCCs, as well as start-up businesses including technology companies developing systems for the transportation industry", that he has "...participated in multiple proceedings before the Commission", and that he has "...written and lectured extensively on international trade, shipping and technology issues." (Declaration of Gerard S. Doyle # 97) Mr. Doyle further explained that as "...attorney for Respondents in this matter, [he is] familiar with all the work done". Id.

Both Mr. Werner and Mr. Doyle are fully familiar with the facts and law relating to the October 25, 2017 Order. Mr. Werner personally filed Respondents' Petition for Attorneys' Fees. There is no reason why between the two of them, the referenced petition cannot be filed within the

time frame currently set forth under the Rules. This would best comport with the requirement of FMC Rule 1, 46 CFR 502.1, that the Rules be applied so as to foster the "just, speedy, and inexpensive" resolution of each proceeding.

On October 25, 2017, Mr. Werner notified complainant in writing that respondents had agreed with the Commissions' Order and were not planning on taking any further action in this matter. After having waited twenty-one (21) days to begin 'mulling over' any purported basis (which does not exist) for reconsideration of this Commission's well-reasoned Order Denying Respondents' Petition for Attorney Fees, respondents have now simply changed their mind and now ask for an enlargement of time for respondents to continue to 'mull over' their decision to seek reconsideration of the Commission's October 25, 2017 Order. It is respectfully submitted that the granting of said request does not further the purposes of FMC Rule 1, which warrants denial of respondents' motion for an enlargement of time.

The Proposed Petition Is Necessarily Pointless

Respondents' proposed petition for reconsideration would be governed by Commission Rule 261, 46 CFR. 502.261, which does not allow reconsideration willy-nilly, but rather, as described in the Rule, sets forth specific standards that must be met. In particular, a petition for reconsideration must include a showing of "a change in material fact or in applicable law", which change has occurred after issuance of the October 25, 2017 Order.

Respondents do not assert that there has been a relevant change in material fact or in applicable law in the twenty-one (21) days that have elapsed between service of the October 25, 2017 Order and the filing of their instant request for additional time. Respondents do not assert any purported basis at all for reconsideration of the Order. That simply does not meet the requirements of Rule 261, which was designed to allow for reconsideration on the basis of a change in material fact or in applicable law, not to indefinitely delay FMC proceedings by merely

elaborating upon or repeating arguments made prior to the issuance of the Order from which reconsideration is sought.

Respondents' Real Goal Is To Delay Entry of a Final Decision

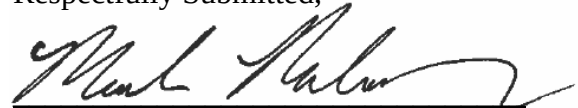
As respondents do not, and cannot, have a valid basis for seeking reconsideration of the October 25, 2017 Order, it is apparent that all their counsel is really trying to achieve via the instant motion is to kick the can down the road in hopes that something or another will someday, somehow, turn up. This is apparently to be accomplished in the first instance by this request for an unjustified and unwarranted delay in the entry of a final decision in this case. This same pattern of delay has been demonstrated by Mr. Werner in other cases throughout the dockets of the U.S. Courts for the Districts of New Jersey and New York.

Here, Mr. Werner does not even assert that he has identified a change in material fact or in applicable law to support seeking reconsideration of the October 25, 2017 Order. Instead, he asks the Commission to effectively grant respondents an enlargement of time, while he goes "fishing" for grounds for alleged reconsideration, which do not exist.

WHEREFORE, it is respectfully requested that respondents' application for an enlargement of time to file a petition for reconsideration of the Commission's October 25, 2017 Order denying them attorneys' fees be denied in its entirety, along with such other and further relief as the Commission may deem just and proper under the circumstances.

Dated: November 19, 2017
Brooklyn, NY

Respectfully Submitted,

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
Attorney for Complainant
marcus.nussbaum@gmail.com

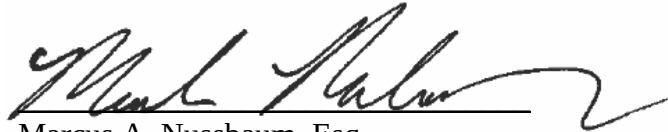
CERTIFICATE OF SERVICE

I hereby certify that I have this day served the **COMPLAINANT'S RESPONSE TO RESPONDENTS' MOTION FOR ENLARGEMENT OF TIME TO FILE A PETITION FOR RECONSIDERATION** upon Respondents' Counsel at the following address:

Jon Werner, Esq.
Lyons & Flood, LLP
One Exchange Plaza
55 Broadway, Suite 1501
New York, NY 10006
Attorney for Respondents

Gerard S. Doyle, Jr.
The Law Office of Doyle & Doyle
Attorneys for Respondents
636 Morris Turnpike
Short Hills, NJ 07078

by first class mail, postage prepaid, and via email (gdoyle@doylelaw.net and jwerner@lyons-flood.com).

A handwritten signature in black ink, appearing to read 'Marcus A. Nussbaum', written over a horizontal line.

Marcus A. Nussbaum, Esq.
P.O. Box 245599
Brooklyn, NY 11224
Tel: 888-426-4370
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Attorney for Complainant
marcus.nussbaum@gmail.com

Dated: Brooklyn, New York
November 19, 2017

APPENDIX “A”



Marcus Nussbaum <marcus.nussbaum@gmail.com>

Docket No. 14-16

Jon Werner <jwerner@lyons-flood.com>

Wed, Oct 25, 2017 at 9:43 AM

To: Marcus Nussbaum <marcus.nussbaum@gmail.com>

Mr. Nussbaum,

In light of this decision denying Respondent's Petition Regarding Attorney Fees, which Respondents will not be appealing, will you consent to an application to cancel the in-person conference scheduled for tomorrow before Magistrate Judge Falk?

Regards,

Jon Werner

----- Forwarded message -----

From: "Secretary" <secretary@fmc.gov>

Date: Oct 25, 2017 9:32 AM

Subject: Docket No. 14-16

To: "Gerry Doyle" <gdoyle@doylelaw.net>, "Jon Werner" <jwerner@lyons-flood.com>, "Marcus Nussbaum" <marcus.nussbaum@gmail.com>

Cc: "Secretary" <secretary@fmc.gov>, "Rachel Dickon" <Rdickon@fmc.gov>

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